

October 6, 2023

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Subject: FCC# ITC-T/C-20191223-00201/WC Docket No. 19-393  
Joint Application by MTN Infrastructure TopCo, Inc. (“MTN”) and North State  
Telecommunications Corporation (“North State”) for authority pursuant to  
Section 214 of the Communications Act of 1934, as amended, to transfer indirect  
control of certain domestic and international Section 214 authorization holders to  
MTN.  
FCC# ITC-T/C-20170302-00027, WC Docket No. 17-60  
Joint Application by MTN and Lumos Network Corp. (“Lumos Network”) for  
authority pursuant to Section 214 of the Communications Act of 1934, as  
amended, to transfer indirect control of certain domestic and international Section  
214 authorization holders to MTN.  
FCC# ITC-ASG-20211012-00148 Assignment Grant of Authority to Gridiron  
Fiber License LLC  
FCC# ITC-ASG-20211012-00149 Assignment Grant of Authority to Panther  
Parent Inc.

Dear Sir/Madam:

This Letter of Agreement (“LOA” or “Agreement”) sets forth the commitments made by MTN and Gridiron Fiber Corporation<sup>1</sup> (“Lumos”) (collectively, “the Parties”) to the U.S. Department of Justice (“USDOJ”), the U.S. Department of Homeland Security (“DHS”), and the U.S. Department of Defense (“DOD”) (collectively, “Compliance Monitoring Agencies” or “CMAs”) to address national security and law enforcement concerns arising from MTN’s, Lumos Network and North State’s joint applications to the Federal Communications Commission (“FCC”) to transfer indirect control of certain domestic and international Section 214 authorization holders. This LOA is intended to supersede and replace the November 7, 2017 LOA outlining the commitments made by Lumos Network to the CMAs and the April 7, 2020 LOA setting forth commitments made by North State and MTN to DOJ.

The Parties adopt as true and correct all statements made by MTN, Lumos, and North State or their representatives to the CMAs and the FCC in the course of the review of the above-referenced applications, and it hereby adopts those statements as the basis for this LOA.

## **Definitions**

1. For purposes of this LOA, the following definitions apply:
  - a. “Access” means the ability to undertake physically or logically any of the following actions:
    - (i) To read, copy, divert, or otherwise obtain non-public information or technology from or about software, hardware, a database or other system, or a network;
    - (ii) To add, edit, delete, reconfigure, provision, or alter information or technology stored on or by software, hardware, a system or network; or
    - (iii) To alter the physical or logical state of software, hardware, a system or network.
  - b. “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by switch, call manager, or call server.
  - c. “Customer Proprietary Network Information” (“CPNI”) means as set forth in 47 U.S.C. § 222(h)(1).

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<sup>1</sup> In October 2021, Lumos Network and North State executed pro forma assignments of their international Section 214 authorizations to Gridiron Fiber License LLC and Panther Parent Inc., respectively. See ITC-ASG-20211012-00148; ITC-ASG-20211012-00149. Gridiron Fiber Corporation is the parent company of the two international Section 214 authorization holders. See Letter, Regarding *Pro Forma* Changes in Ownership, Oct. 7, 2021(ITC-ASG-20211012-00148).

- d. “Date of this LOA” means the date on which the Parties execute this LOA.
- e. “Days” means calendar Days unless otherwise specified.
- f. “Domestic Communications” (“DC”) means:
  - (i) Wire Communications, or Electronic Communications (whether stored or not), from one location within the United States, including its territories, to another location within the United States; or
  - (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.
- g. “Domestic Communications Infrastructure” (“DCI”) means any of Lumos’s systems that physically is located in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of<sup>2</sup>, Lumos to provide, process, direct, control, supervise, or manage DC.
- h. “Electronic Surveillance” means:
  - (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. § 2510(1), (2), (4) and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
  - (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 et seq.;
  - (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 et seq. and 50 U.S.C. § 1841 et seq.;
  - (iv) Acquisition of location-related information concerning a subscriber or facility;
  - (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and

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<sup>2</sup> The phrase “on behalf of,” as used in this paragraph, does not include entities with which SORACOM has contracted for peering, interconnection, roaming, long distance, wholesale network access, or other similar arrangements.

- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.
- i. “Foreign” means non-United States, or its territories.
- j. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau or political subdivision, and any court, tribunal, judicial or arbitral body.
- k. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates or authorizations, and other orders, legal process, statutory authorizations and certifications for Electronic Surveillance, physical search and seizure, production of tangible things or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.
- l. “Managed Network Service Provider” (“MNSP”) means any third party that has Access to Principal Equipment for the purpose of:
  - (i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or
  - (ii) provision of DC or operation of DCI, including: customer support; Operations Support Systems (“OSS”); Business Support Systems (BSS); Network Operations Centers (“NOCs”); information technology; cloud operations/services; 5G (Software Defined Networking, Network Functions Virtualization, Applications); and datacenter services and operations.
- m. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.
- n. “Network Systems Security Plan” (“NSSP”) means a network systems security plan that addresses information security, remote access, physical security, cybersecurity, third-party contractors (managed service providers), Outsourcing and Offshoring, maintenance and retention of system logs, protection of Lawful U.S. Process, protection of U.S. Records obtained by the Parties from customers or through provision of services, and data breach notifications.
- o. “NIST-Compliant Cybersecurity Plan” means a cybersecurity plan that

conforms with the most recently published version of the National Institute of Standards and Technology (NIST) Cybersecurity Framework, available at <https://www.nist.gov/cyberframework>.

p. “Offshore” means performing obligations of this LOA using entities and personnel outside of the territorial limits of the United States, whether those entities or personnel are employees of the Parties.

q. “Outsource” means, with respect to DC, supporting the services and operational needs of the Parties at issue in this LOA using contractors or third parties.

r. “Personally Identifiable Information” or “PII” means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person's identity, alone, including his or her name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent's surname, including any “personal identifier information” as set forth in 31 C.F.R. § 800.402(c)(6)(vi)(B).

s. “Principal Equipment” means all primary telecommunications and information network (*e.g.*, wireline, wireless, subsea, satellite, LAN, WAN, WLAN, SAN, MAN, IP, MPLS, FR, Wi-Fi, 3G/4G/LTE, 5G, etc.) equipment (*e.g.*, hardware, software, platforms, OS, applications, protocols) that supports core telecommunications or information services (*e.g.*, voice, data, text, MMS, FAX, video, Internet, OTT, Apps), functions (*e.g.*, network/element management, maintenance, provisioning, NOC, etc.), or operations (*e.g.*, OSS/BSS, customer support, billing, backups, cloud services, etc.), including but not limited to routers, servers, circuit switches or soft-switches, PBXs, call processors, databases, storage devices, load balancers, radios, smart antennas, transmission equipment (RF/Microwave/Wi-Fi/Fiber Optic), RAN, SDR, equalizers/amplifiers, MDF, digital/optical cross-connects, PFE, multiplexers, HLR/VLR, gateway routers, signaling, Network Function Virtualizations, hypervisors, EPC, BSC, BT, or eNodeB.

t. “Security Incident” means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved policy or procedure under this LOA;
- (ii) Any unauthorized Access to, or disclosure of, PII or U.S. Records;
- (iii) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Any one or more of the following which affect the company’s computer network(s) or associated information systems:

- A. Unplanned disruptions to a service or denial of a service;
- B. Unauthorized processing or storage of data;
- C. Unauthorized modifications to system hardware, firmware, or software; or
- D. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect company's ability to comply with the terms of this LOA.

u. "Subscriber Information" means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

v. "U.S. Records" means the Parties' customer billing records, Subscriber Information, PII, CDRs, CPNI, and any other information used, processed, or maintained in the ordinary course of business related to the services offered by the Parties within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. § 2703(c), (d) and 18 U.S.C. § 2709.

## **Personnel**

2. Lumos agrees to designate and maintain a U.S. law enforcement point of contact ("LEPOC") in the United States who will be subject to prior approval by USDOJ, including the FBI. The LEPOC shall be either a U.S. citizen residing in the United States or its territories or a trusted third-party ("TTP") compliance vendor unless the USG Parties otherwise agrees in writing. The LEPOC must be approved by the FBI to receive service of Lawful U.S. Process for U.S. Records and, where possible, to assist and support lawful requests for surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.

3. Lumos agrees to provide the LEPOC's PII or the TTP's name and contact information to USDOJ within fifteen (15) Days from the Date of this LOA.

4. Lumos agrees to notify USDOJ, including the FBI, in writing at least **30 Days** prior to modifying its LEPOC for USDOJ and FBI objection or non-objection. For those cases involving the unexpected firing, resignation, or death of LEPOC, written notice will be provided within **five (5) Days** of such event. Under these circumstances, USDOJ and FBI will object or not object to the replacement LEPOC within **30 Days** of notification.

5. Lumos agrees that the designated LEPOC will have Access to all U.S. Records, and, in response to Lawful U.S. Process, will make such records available promptly and, in any event, will respond to the request no later than **five (5) Days** after receiving such Lawful U.S. Process unless USDOJ grants an extension.

6. Lumos agrees to implement, either directly or through a vendor or service provider, a process to screen existing or newly hired personnel and any personnel of an approved Outsourced or Offshored service provider performing under an agreement with the Parties. The

personnel screening process shall include background investigations, public criminal records checks, or other analogous means to ascertain a person's trustworthiness. The Parties further agree to provide the CMAs with a written description of this personnel-screening process no later than **60 Days** after the Date of this LOA for CMA objection or non-objection.

### **Lawful U.S. Process, Foreign Access, and Requests for Information**

7. Lumos agrees to comply with all court orders and Lawful U.S. Process, including process relating to Electronic Surveillance.

8. Upon receipt of any Lawful U.S. Process, Lumos (or its approved TTP) agrees to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide to the requesting officials, in a manner and time consistent with the Lawful U.S. Process.

9. Lumos (and any approved TTP) agrees not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, Domestic Communications, or any call content or call data information, to any Foreign Government or a Foreign Person that has not been approved by the CMAs consistent with Paragraph 18 of this LOA, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

10. Lumos (and any approved TTP) agree not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, or any person not authorized under the Lawful U.S. Process, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

11. Lumos (and any approved TTP) agree to refer any requests for information described in Paragraph 9 from a Foreign Person that has not been approved by the CMAs consistent with Paragraph 18 of this LOA, or a Foreign Government, including any legal process from a Foreign Government, to USDOJ as soon as possible, but in no event later than **five (5) Days** after such a request, or legal process, is received by, or made known to, Lumos, unless disclosure of the request, or legal process, would be in violation of U.S. law, or in violation of an order of a court of competent jurisdiction in the United States.

12. Lumos (and any approved TTP) agree not to comply with such requests from Foreign Governments and Foreign Persons that has not been approved by the USDOJ consistent with Paragraph 18 of this LOA without prior written consent of USDOJ, or an order of a court of competent jurisdiction in the United States.

13. Lumos (and any approved TTP) agree to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

### **Unauthorized Access and Security Incidents**

14. Lumos agrees to take all practicable measures to prevent unauthorized Access to U.S. Records, DC, and the DCI.

15. Lumos agrees to take all practicable measures to prevent any unlawful use or disclosure of information relating to U.S. Records or DC.

16. Lumos agrees to maintain the Network Systems Security Plan (“NSSP”) and Cybersecurity Plan (“Cybersecurity Plan”) (together with NSSP, “the Plans”) approved by the CMAs pursuant to the aforementioned superseded LOAs.

17. Lumos agrees that the NSSP will address, but not be limited to, information security, remote Access, physical security, cyber-security, third-party contractors, Outsourcing and Offshoring, maintenance and retention of system logs, protection of Lawful U.S. Process, protection of U.S. Records obtained by Lumos in the ordinary course of business, and Lumos’s specific plan to require that third-party providers notify Lumos in the event of a breach or loss of U.S. Records within a specified time period after discovery, not to exceed 72 hours from the time of discovery.

18. Lumos agrees to notify the CMAs of any Foreign Person employed by Lumos and its parent companies that will have Access to U.S. Records; including PII, CPNI and CDRs; DC; and DCI for CMA objection or non-objection. Lumos further agrees to provide the PII of each Foreign Person identified pursuant to this paragraph to the CMAs as part of such notification.

19. Lumos agrees to notify the CMAs at least **30 Days** prior to storing any U.S. Records outside of the United States or its territories for CMA objection or non-objection. Such notice shall include:

- a. A description of the type of information to be stored outside of the United States;
- b. The custodian of the information (even if such custodian is Lumos);
- c. The location where the information is to be stored; and
- d. The factors considered in deciding to store that information outside of the United States.

### **Reporting Incidents and Breaches**

20. Lumos agrees to report to the CMAs promptly if it learns of information that reasonably indicates:

- a. A Security Incident;
- b. Unauthorized Access to, or disclosure of, any information relating to services provided by Lumos, or referring or relating in any way to Lumos’s customers in the United States or its territories;
- c. Any unauthorized Access to, or disclosure of, DC in violation of federal, state, or local law; or

- d. Any material breach of the commitments made in this LOA.

21. In its agreements with new third-party service providers or renewals of existing agreements, Lumos agrees to require any third-party service provider to disclose to Lumos any data breach of any U.S. Records, or any loss of U.S. Records, whether from a data breach, or other cause, within **72 hours** of the third party discovering the breach or loss.

22. Lumos agrees to notify the CMAs, including the points of contact (POC) listed in Paragraph 31, in writing of any of the Security Incidents or breaches described in Paragraphs 20 or 21 of this LOA. The notification shall take place no later than fifteen (15) Days after Lumos or any third party providing Outsourced or Offshored services to Lumos discovers the incident, intrusion, or breach has taken or is taking place, or sooner when required by statute or regulations.

23. Lumos agrees to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within seven (7) business Days after reasonable determination that a person without authorization, or in exceeding his or her authorization, has gained Access to, used, or disclosed CPNI, or that of a third party used by Lumos, and shall electronically report the matter to the central reporting facility through the following portal:

<https://www.cpnireporting.gov/cpni/content/disclaimer.xhtml?dswid=8089>

### **Outsourced and Offshored Service Providers**

24. Lumos agrees to notify the CMAs in writing no less than **30 days** prior to the use of any new Outsourced or Offshored service providers that provide services to Lumos for CMA objection or non-objection. The CMAs agree to object or non-object to any new Outsourced or Offshore service providers, within 30 Days of receiving notice. The list should include any Outsourced or Offshored service provider that provides services for:

- a. MNSP services;
- b. NOC(s);
- c. Network maintenance services;
- d. Billing or customer support services;
- e. Any operation or service that could potentially expose the DCI, DC, or U.S. Records to include CPNI such as CDRs; and
- f. Deploying any network elements, hardware, software, core network equipment, and network management capabilities that are owned, managed, manufactured, controlled by, or is subject to the influence or direction of a Foreign Government of which Lumos is reasonably aware of or has been notified by the CMAs.

### **Change in Ownership and Service Portfolio**

26. Lumos agrees to provide the CMAs notice of any changes to its business, including but not limited to corporate structure changes, ownership changes involving five (5) percent or greater equity, corporate name changes, business model changes, corporate headquarter location changes, or business operation location changes no less than **30 Days** in advance of such change. Lumos also agrees to provide the CMAs notice within **30 Days** of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of reorganizing, refinancing, or otherwise seeking relief from all or some of Lumos's debts.

27. Lumos agrees to provide the CMAs notice of any material change to its current portfolio of services offering, including offers of other services beyond its current portfolio, no less than **30 Days** in advance of such change for the CMAs' objection or non-objection.

### **Principal Equipment**

29. Lumos agrees to notify the CMAs in writing at least **30 Days** prior to introducing any new make or model of Principal Equipment or new vendors, contractors, or subcontractors involved in providing, installing, operating, managing, or maintaining the Principal Equipment (where such make or model or vendor was not already identified to the CMAs). The CMAs will object or non-object to such new make or model of Principal Equipment or vendor within **30 Days** of receipt of notice.

30. Lumos agrees to provide the CMAs with the names of providers, suppliers, and entities that will perform any maintenance, repair, or replacement that may result in any modification to its Principal Equipment.

### **Annual Report**

31. Lumos agrees to provide an annual report to the CMAs regarding its compliance with this LOA, to include:

- a. Certification that there were no other changes not previously reported to the CMAs;
- b. Notice(s) regarding the company's handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein) including a list of any Foreign Persons with Access to U.S. Records not previously reported to the CMAs;
- c. Notification(s) of the installation and/or purchase or lease of any new makes or models of Foreign-manufactured telecommunication equipment not previously reported to the CMAs (including, but not limited to, switches, routers, software, hardware);

- d. Notification(s) of any relationships with Foreign-owned telecommunications partners, including any network peering (traffic exchange) relationships not previously reported to the CMAs;
- e. Updated network diagrams and topology maps showing all extant network Points of Presence (PoPs), facilities, and NOCs where Lumos network connects with other networks, and devices within such PoPs;
- f. Updated Nssp and Cybersecurity Plan;
- g. Report(s) of any occurrences of Security Incidents including, but not limited to, cyber-security incidences, network and enterprise breaches, and unauthorized Access to U.S. Records;
- h. Recertification of the services that Lumos provides or confirmation that no additional services are being offered;
- i. A re-identification of the name of and contact information of the LEPOC;
- j. Report progress or status of renegotiations of existing agreements with third-party service providers in accordance with Section 21; and
- k. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due each calendar year beginning one (1) year from the Date of this LOA. The Parties agrees to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that the CMAs identify to Lumos in the future: Chris Clements, USDOJ (at [Christopher.Clements@usdoj.gov](mailto:Christopher.Clements@usdoj.gov)); Tyler Wood (at [Compliance.Telecom@usdoj.gov](mailto:Compliance.Telecom@usdoj.gov)); [compliance@hq.dhs.gov](mailto:compliance@hq.dhs.gov), [osd.pentagon.ousd-a-s.list.team-telecom@mail.mil](mailto:osd.pentagon.ousd-a-s.list.team-telecom@mail.mil).

### **Miscellaneous**

32. Lumos will permit all routine site visits and requested interviews, on-site or otherwise, with at least twenty-four hour notice. Nothing in this provision shall be construed as limiting or otherwise prohibiting the CMAs from discharging their obligations in circumstances deemed extraordinary.

33. If the CMAs determine this LOA no longer adequately addresses national security or law enforcement, Lumos will resolve those concerns. Rejection of a proposed modification alone shall not alone constitute evidence of a failure to negotiate in good faith. Rejection of a proposed modification may, however, serve as a basis to request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to Lumos or its successors-in-interest.

34. Lumos agrees that in the event that it fails to comply with a material commitment set forth in this LOA, to include conduct contrary to timely the CMAs' objection to any notice submitted pursuant to this LOA, the CMAs may request the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to Lumos or its successors-in-interest in addition to pursuing any other remedy available at law or equity.

35. Lumos understands that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the CMAs will petition the FCC to condition the aforementioned Section 214 authorizations on compliance with this LOA.

Sincerely,



Chief Legal Officer 10/6/2023

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Name/Title/Date

**Lumos**